

		six month period runs from the entry of default and not the date a default judgment is entered. (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 39.) Here, the motion was filed nearly fourteen months after entry of default and is thus untimely. (See ROA 26 and 27 [5/22/25 entry of default] and ROA 65 [7/1/26 date of filing motion for relief from default].) Since the motion has not been made “within a reasonable time, in no case exceeding six months, after the judgment ... was taken”, Defendants are not entitled to relief under Code Civ. Proc. §473, subd. (b). Plaintiff shall provide notice of this ruling.
5	Lanagan vs. Penney OPCO LLC 2025-01516569	Demurrer to Complaint Defendant Penney OpCo, LLC’s demurrer to complaint is SUSTAINED as to the second and third causes of action for violation of Penal Code section 502 and the Unfair Competition Law, and otherwise OVERRULED. Plaintiff T.K.C. Lanagan shall have 10 days leave to file a second amended complaint. First cause of action for Penal Code section 638.51. The complaint states facts sufficient to constitute a cause of action for violation of Penal Code section 638.51. (See Pen. Code, § 638.51; see also Compl. ¶¶ 1-13, 35-37, 45-47, 67-125.) Penal Code section 637.2 explicitly authorizes a private civil cause of action for the violation of Penal Code section 638.51. Penal Code section 637.2 provides that “[a]ny person who has been injured by a violation of this chapter [i.e., Pen. Code, §§ 630-638.55] may bring an action against the person who committed the violation” for \$5,000 per violation or three times his actual damages, whichever is greater. (Pen. Code, § 537.2, subd (a).) Section 638.51 falls within “this

	chapter” covered by section 647.2. (See Pen. Code, §§ 637.2, 638.51 [both sections appearing under chapter 1.5 of title 15 of the Penal Code]; see also id., § 638.51, subd. (d) [setting forth a complete defense to a “civil ... action brought under this section...”].) Penal Code section 638.51, a provision of the California Invasion of Privacy Act (CIPA) known as California’s Trap and Trace Law, is not limited to telephonic surveillance. (See Pen. Code, §§ 638.50, subds. (a)-(c), 638.51, subd. (a); see also id., § 629.51, subd. (a)(2).) A pen register or trap and trace “process” can include tracking software that identifies and gathers consumer IP information and unique user data, including software embedded in a website to collect such visitor information. (Moody v. C2 Educational Systems Inc. (C.D. Cal. 2024) 742 F.Supp.3d 1072, 1076; accord, Zarif v. Hwareh.com, Inc. (S.D. Cal. 2025) 789 F.Supp.3d 880, 898 [Meta Pixel and similar tracking software can qualify as pen register or “trap and trace device”]; Hassid v. Alex and Ani, LLC (C.D. Cal., Jan. 20, 2026, No. CV 25-0679 FMO (JCX)) 2026 WL 160535 at *6 (Hassid); Riganian v. LiveRamp Holdings, Inc. (N.D. Cal. 2025) 791 F.Supp.3d 1075, 1093-1094 [noting “other sections of CIPA specifically do include language regarding telephones,” and “if the drafters of Section 638.50 intended for ‘pen register’ to be limited to telephone technologies, they knew how to say so”].) The complaint sufficiently alleges defendant embedded such tracking software in its website, including “the Microsoft Bing Ads Tracker, the Meta Tracker, the TikTok Tracker, the Snapchat Tracker and the Criteo Tracker,” to obtain plaintiff’s private user information, including “Plaintiff’s IP addresses, device characteristics, browser types, page navigation behavior, ... unique tracking cookies,” URLs of visited pages, and plaintiff’s associated behavioral data, including, inter alia, “page views, click events, session duration, and identifying browser characteristics,” without a first obtaining a court order or plaintiff’s consent.
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		(See Pen. Code, § 638.51, subd. (a), (b)(5); see also Compl. ¶¶ 1-13, 35-37, 45-47, 67-125.) Contrary to defendant's contentions, nothing in the complaint shows or suggests it is a provider of electronic communication service within the meaning of Penal Code section 638.51, subdivision (b). (See Pen. Code, § 638.51, subd. (b).) Second cause of action for violation of Penal Code section 502. The complaint fails to state facts sufficient to constitute the second cause of action for violation of Penal Code section 502. Specifically, the complaint fails to allege facts showing plaintiff has suffered any "damage or loss" by reason of the alleged violation. (See Pen. Code, § 502; CACI No. 1812 [elements].) Third cause of action for violation of Unfair Competition Law (UCL), Business and Professions Code section 17200. The complaint fails to state facts sufficient to constitute the third cause of action for violation of the UCL. (Bus. & Prof. Code, § 17204 [standing]; Archer v. United Rentals, Inc. (2011) 195 Cal.App.4th 807, 815 (Archer) [to allege standing under the UCL, a plaintiff must suffer injury in fact and have lost money or property]; see also Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 323.) The complaint merely alleges the loss of plaintiff's "valuable personal [digital] data." (Compl. ¶¶ 137-138.) This is insufficient; "plaintiff[] fail[s] to demonstrate how such [a] privacy violation translates into a loss of money or property." (Archer v. United Rentals, Inc. (2011) 195 Cal.App.4th 807, 816; see Folgestrom v. Lamps Plus, Inc. (2011) 195 Cal.App.4th 986, 993-994 [no allegation as to how plaintiff's home address constitutes his "intellectual property" in the first place, or how the sale of such information caused plaintiff economic injury for purposes of UCL standing]; see also Shah v. Capital One Financial Corporation (N.D. Cal. 2025) 768 F.Supp.3d 1033, 1048
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		[personal information does not constitute property; even if a company made money off of the sharing or use of a plaintiff's information, that company's gain of money does not equal a plaintiff's loss of money or property].) Request for judicial notice. Defendant's request for judicial notice is DENIED as to exhibits C-E, and GRANTED as to the remainder. (See Bolanos v. Superior Court (2008) 169 Cal.App.4th 744, 761 [trial court rulings have no precedential value]; Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 45, fn. 9 [court may take judicial notice of published legislative history].) Defendant shall give notice.
8	Hoverson vs. Angels Baseball LP 2023-01367831	1. Motion for Summary Judgment and/or Adjudication 2. Motion to Seal Defendant Angels Baseball LP's motion for summary judgment is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Both parties' evidentiary objections are OVERRULED. Some of plaintiffs' opposition documents were not timely filed or served. The Court exercises its discretion to consider these late documents, particularly as moving defendant's Reply papers address their merits, and do not show that moving defendant was prejudiced by the late filing / service. (Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262 [court's discretion whether to accept or reject late filings]; Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765 [same]; Carlton v. Quint (2000) 77 Cal.App.4th 690, 698 [response on merits